FISHERIES MANAGEMENT ACT 1991

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY MANAGEMENT PLAN 2003

SESSF DIRECTION No. 04

WESTERN ZONE ORANGE ROUGHY CLOSURE

I, Richard John McLoughlin, Managing Director of the Australian Fisheries Management Authority, as delegate, make the following Direction under subsection 17(5A) of the *Fisheries Management Act 1991* and subsection 56(1) of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*.

Dated 11th July 2005

(Signed) Richard McLoughlin

Managing Director,
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as SESSF Direction No. 04.

Commencement

2. This Direction commences on the day after it is registered on the Federal Register of Legislative Instruments.

Application

3. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Period of Application

4. This Direction applies for a period beginning on the date this Direction commences and ending at 2400 hours UTC on the 7th of August 2005.

Interpretation

5.1 In this Direction:

"**boat**" means a boat that is nominated on a fishing concession for the Southern and Eastern Scalefish and Shark Fishery;

"**fishing**" means the commercial fishing activities that are referred to in section 20 of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* and defined in the *Fisheries Management Act 1991*;

"**equipment**" means equipment for fishing;

"**UTC**" means Coordinated Universal Time, the time scale based on the second (SI), maintained by the International Bureau of Weights and Measures. For the purposes of this Direction UTC is equivalent to mean solar time at the prime meridian (0 degrees longitude), formerly expressed in Greenwich Mean Time (GMT).

5.2 A term used in this Direction that is defined for the purposes of the Southern and Eastern Scalefish and Shark Fishery Management Plan 2003 has the same meaning in this Direction as it has in that plan.

[**Notes**: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this determination.

2. Terms defined in the Southern and Eastern Scalefish and Shark Fishery Management Plan 2003 include "Southern and Eastern Scalefish and Shark Fishery " and "Southern and Eastern Scalefish and Shark Fishery area".]

5.3 The origin of geographical coordinates used in this Direction is the Geocentric Datum of Australia, as defined in Gazette No. GN 35, 6 September 1995.

Prohibition on fishing

6. A person fishing under a trawl boat statutory fishing right is prohibited from fishing in:

(a) an area described in Schedule 1;

(b) during the period beginning on the date this direction commences and ending at 2400 hours UTC on the 7th of August 2005.

To whom do the prohibitions in sections 5 not apply?

7. The prohibitions in sections 5 do not apply to a person if the person:

(a) is fishing in accordance with another plan of management in force under the Act, or a law of a State or Territory that is in force in relation to the Southern and Eastern Scalefish and Shark Fishery area.

SCHEDULE 1

Western Zone

The area bounded by the line:

(a) Commencing at the intersection of the parallel of latitude 37 degrees 9 minutes South and the meridian of longitude 138 degrees 8 minutes East; and

(b) Then easterly to the point 37 degrees 16 minutes South and 138 degrees 48 minutes East;

(c) Then south along that meridian to its intersection with the parallel of latitude 37 degrees 30 minutes South;

(d) Then westerly to the point 37 degrees 23 minutes South and 138 degrees 8 minutes East;

(e) Then north along the meridian to the point of commencement.